

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ASHLEY PARKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MATTHEW DIBUONO, Tax # 956593, SERGEANT
JOSEPH HAUGH, Tax # 936741, LIEUTENANT
SHARIS SANDERS and POLICE OFFICERS JOHN
DOES #1-4 (names and number of whom are unknown at
present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
August 22, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: **City of New York**, 100 Church Street, NY, NY 10007
Police Officer Matthew Dibuono, Tax # 956593, 47th Precinct, 4111 Laconia Avenue,
Bronx, NY 10466,
Sergeant Joseph Haugh, Tax # 936741, 47th Precinct, 4111 Laconia Avenue, Bronx, NY
10466,
Lieutenant Sharis Sanders, 47th Precinct, 4111 Laconia Avenue, Bronx, NY 10466,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ASHLEY PARKER,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MATTHEW DIBUONO, Tax # 956593, SERGEANT
JOSEPH HAUGH, Tax # 936741, LIEUTENANT
SHARIS SANDERS and POLICE OFFICERS JOHN
DOES #1-4 (names and number of whom are unknown at
present),**JURY TRIAL DEMANDED**

Defendants.

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Plaintiff ASHLEY PARKER, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verifies Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 24, 2017, at approximately 12:00 p.m, plaintiff was lawfully inside of the 47th precinct located at 4111 Laconia Ave, Bronx, NY 10466, when defendants falsely arrested and imprisoned plaintiff without probable cause or any legal justification. Defendants provided the Bronx District Attorneys' Office with false, misleading and incomplete evidence regarding their basis for arresting and charging plaintiff with crimes. Plaintiff was transported against her will to Bronx Central Booking whereat the False arrest and imprisonment continued until May 25, 2017 at approximately 4:00 p.m. when she was released from custody after the District Attorney's Office declined to prosecute her for committing any crime. Additionally, defendants provided false, misleading and incomplete evidence about plaintiff and the circumstances leading to her arrest to the Administration for Children's Services ("ACS") and maliciously recommended that ACS remove plaintiff's children from her custody, without due process and in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and negligently and/or intentionally caused plaintiff to suffer from extreme emotional distress. Plaintiff's children were removed from her custody for an extended period of time and were

subjected to abusive and extremely harmful care while they were in foster care under the supervision of ACS. After a lengthy time period, plaintiff's children returned to plaintiff's custody. Plaintiff was deprived of her constitutional and common law rights when the individual defendants falsely arrested and imprisoned plaintiff, denied plaintiff of her right to due process, unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and negligently and/or intentionally inflicted emotional distress upon plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Ashley Parker is a resident of Bronx, New York.

3. Defendant Police Officer Matthew Dibuono, Tax # 956593, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, Matthew Dibuono, Tax # 956593 was assigned to the 47th Precinct.

5. Defendant Police Officer Matthew Dibuono, Tax # 956593 is being sued in his individual and official capacity.

6. Defendant Sergeant Joseph Haugh, Tax # 936741, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident, Defendant Sergeant Joseph Haugh, Tax # 936741 was assigned to the 47th Precinct.

8. Sergeant Joseph Haugh, Tax # 936741, is being sued in his individual and official capacity.

9. Defendant Lieutenant Sharis Sanders is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. On the date of the subject incident, Defendant Lieutenant Sharis Sanders was assigned to the 47th Precinct.

11. Defendant Lieutenant Sharis Sanders, is being sued in his individual and official capacity.

12. New York City Police Officers John Does # 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does # 1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. Defendant CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law for plaintiff's claims on or about October 23, 2017.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On or about May 24, 2017 at approximately 11:00 a.m., plaintiff went with one of her children, plaintiff's friends, and plaintiff's friend's children to a public park/playground located at 224th Street and Carpenter Road, Bronx, New York.

23. Plaintiff chatted with her friends and watched her child as the children all played together in the playground.

24. Plaintiff's child wandered away from the playground by himself and plaintiff did not see him walk away.

25. Immediately after plaintiff realized her child was missing plaintiff frantically canvassed the entire park for her child and asked numerous adults whether they had seen him or knew where he was, but plaintiff was unable to locate her child.

26. After plaintiff unsuccessfully canvassed the park for her child she called 911 to report her child missing and the 911 operator informed plaintiff that they would dispatch police officers to her location.

27. Plaintiff waited for officers to respond to her 911 call, but after what felt like a very long time to plaintiff the police officers had still not responded to her 911 call and plaintiff decided that it would be more efficient for her to walk to the 47th precinct which was located close to where plaintiff was waiting for the officers to report her child missing.

28. Upon arriving at the 47th precinct plaintiff was advised that police officers already found her child, that they had him in their custody at the precinct, and that her child was not harmed or injured in any way.

29. Plaintiff's child wandered out of the park without telling his mother and walked home from the park.

30. Plaintiff's child was found by a bystander standing in front of the apartment building where plaintiff and her children lived.

31. The individual that found plaintiff's child called the police to report a lost child.

32. Police Officers from the 47th Precinct responded to plaintiff's apartment building and observed plaintiff's child at the building uninjured and unharmed and drove her child back to the 47th precinct.

33. Plaintiff's other children were attending school when plaintiff's child was missing.

34. Plaintiff's child that was missing was too young to attend school.

35. After plaintiff arrived at the 47th Precinct looking for her child, the defendants unlawfully handcuffed plaintiff, and falsely arrested and imprisoned without legal justification or probable cause for allegedly endangering the welfare of a child.

36. Plaintiff was not permitted to see her child or communicate with him and plaintiff was unlawfully detained against her will at the 47th precinct for many hours.

37. Plaintiff was unlawfully fingerprinted and photographed at the 47th Precinct.

38. Plaintiff was transported to Bronx Central Booking after she had already been detained for many hours at the 47th Precinct.

39. The false arrest, false imprisonment and unlawful detention of plaintiff continued for many hours while she was detained in several large holding cells at Central Booking.

40. Defendants provided the Bronx District Attorneys' Office with false, misleading and incomplete evidence regarding their basis for arresting and charging plaintiff with crimes.

41. Additionally, defendants provided false, misleading and incomplete evidence about plaintiff and the circumstances leading to her arrest to the Administration for Children's Services ("ACS") and maliciously recommended that ACS remove plaintiff's children from her custody, without due process and in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and negligently and/or intentionally caused plaintiff to suffer from extreme emotional distress.

42. Defendants notified ACS of the false charges they brought against plaintiff and as a result of defendants fabricated description of the events leading to plaintiff's arrest ACS took custody of plaintiff's child who was missing and plaintiff's other children and placed them into foster care.

43. ACS also opened a case against plaintiff for neglect as a result of the false allegations made by defendants against plaintiff.

44. Plaintiff's children were removed from her custody for an extended period of time and were subjected to abusive and extremely harmful care while they were in foster care under the supervision of ACS.

45. After a lengthy time period, plaintiff's children returned to plaintiff's custody.

46. Plaintiff was unlawfully detained at Bronx Central Booking until May 25, 2017 at approximately 4:00 p.m. when she was released from custody after the District Attorney's Office declined to prosecute her for committing any crime.

47. At no time relevant herein did plaintiff commit a crime or behave in a manner that would give the defendant police officers reasonable suspicion, probable cause, or any objectively reasonable basis to believe plaintiff committed or was about to commit a crime.

48. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable false arrest/ imprisonment, seizure, and seizure of plaintiff's children.

49. A notice of claim was timely served on the Comptroller of the City of New York and at least thirty days have elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

50. The unlawful false arrest, false imprisonment, denial of the right to due process, unlawful seizure of plaintiff's children, and negligent and/or intentional infliction of emotional distress upon of plaintiff by the individually named defendants caused plaintiff to sustain severe psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned, and for her children to be unlawfully seized and removed from plaintiff's custody, without probable cause and without being afforded the right to due process, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States, the right to Due Process in violation of the Fifth Amendment to the United States Constitution and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct..

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FIFTH CAUSE OF ACTION

Failure to Intervene

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

69. Defendants failed to intervene to prevent the unlawful conduct described herein.

70. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligence

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants owed a duty of care to plaintiff.

75. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, and maliciously prosecuting plaintiff.

76. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

77. All of the foregoing occurred without any fault or provocation by plaintiff.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

81. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

83. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

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PRAYER FOR RELIEF

WHEREFORE, plaintiff Ashley Parker demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
August 22, 2018

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 22, 2018

DAVID M. HAZAN, ESQ.